



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1118: rural hospitals; radiation protection grants

S/E: historic neighborhoods; housing; zoning

GRESS FLOOR AMENDMENT

1. Removes the provisions relating to the building form and dimensional standards for municipal middle housing developed.
2. Removes demolished structures on sites that are *designated as historic by the municipality* from areas where middle housing cannot be developed unless the demolition was necessary due to conditions that constitute a danger to public health, safety and welfare.

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4/27/2026

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GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1118
(Reference to APPROPRIATIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 9-462.13, Arizona Revised Statutes, is amended
4 to read:

5 9-462.13. Zoning; development; middle housing; applicability;
6 definitions

7 A. On or before January 1, 2026, a municipality with a population
8 of seventy-five thousand persons or more must authorize, by ordinance and
9 incorporate into its development regulations, zoning regulations and other
10 official controls, the development of duplexes, triplexes, fourplexes and
11 townhomes as a permitted use on both of the following:

12 1. All lots zoned for single-family residential use within one mile
13 of the municipality's central business district.

14 2. At least twenty percent of any new development of more than ten
15 contiguous acres.

16 B. The municipality may not do any of the following:

17 1. Discourage the development of middle housing through
18 requirements or actions that individually or cumulatively make
19 impracticable the permitting, siting, or construction of middle housing.

20 2. Restrict middle housing types to less than two floors.

21 3. Restrict middle housing types to a floor area ratio of less than
22 fifty percent.

23 4. Set restrictions, permitting or review processes for middle
24 housing that are more restrictive than those for single-family dwellings
25 within the same zone.

26 5. Require owner occupancy of any structures on the lot.

1 6. Require any structures to comply with a commercial building code
2 or to contain a fire sprinkler.

3 7. Require more than one off-street parking space per unit.

4 C. This section does not prohibit the governing body of a
5 municipality from allowing either of the following:

6 1. Single-family dwellings in areas zoned for single-family
7 dwellings.

8 2. Additional types of middle housing not required under this
9 section.

10 D. This section does not apply to any of the following:

11 1. Areas that are not incorporated.

12 2. Areas that lack sufficient urban services.

13 3. Areas that are not served by water and sewer services.

14 4. Areas that are not zoned for residential use.

15 5. Areas that are not incorporated and are zoned under an interim
16 zoning designation that maintains the area's potential for planned urban
17 development.

18 6. Areas covered under title 48, chapter 6, article 4.

19 7. Any land within the territory in the vicinity of a public
20 airport as defined in section 28-8486 or to the extent this section would
21 interfere with the public airport's ability to comply with the laws,
22 regulations and requirements of the United States related to applying for,
23 receiving or spending federal monies.

24 8. Any land within the territory in the vicinity of a military
25 airport as defined in section 28-8461.

26 E. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY ALLOW MIDDLE
27 HOUSING THAT IS DEVELOPED IN AN AREA DESIGNATED AS HISTORIC BY THE
28 MUNICIPALITY OR IN AN AREA THAT IS DESIGNATED AS HISTORIC ON THE NATIONAL
29 REGISTER OF HISTORIC PLACES IF THE MIDDLE HOUSING IS DESIGNED TO BE
30 COMPATIBLE WITH THE HISTORIC CHARACTER, SCALE AND SETTING OF THE
31 SURROUNDING AREA.

32 F. FOR MIDDLE HOUSING THAT IS DEVELOPED PURSUANT TO SUBSECTION E OF
33 THIS SECTION~~[.]~~~~[;]~~

34 ~~[;]~~ THE MUNICIPALITY MAY REQUIRE THAT THE MIDDLE HOUSING COMPLY
35 WITH THE HISTORIC PRESERVATION OR DESIGN STANDARDS ADOPTED BY THE
36 MUNICIPALITY OR, IF THE MUNICIPALITY HAS NOT ADOPTED HISTORIC PRESERVATION
37 OR DESIGN STANDARDS, WITH THE UNITED STATES SECRETARY OF THE INTERIOR'S
38 STANDARDS FOR THE TREATMENT OF HISTORIC PROPERTIES, INCLUDING THE
39 STANDARDS GOVERNING REHABILITATION AND NEW CONSTRUCTION.

40 ~~[2. THE MUNICIPALITY MAY REGULATE STANDARDS, INCLUDING BUILDING~~
41 ~~HEIGHT, MASSING, LOT COVERAGE, SETBACKS, ROOF FORM, SITE LAYOUT AND~~
42 ~~OVERALL BUILDING VOLUME.~~

43 ~~3. MIDDLE HOUSING MAY NOT EXCEED THE MAXIMUM BUILDING HEIGHT, LOT~~
44 ~~COVERAGE OR FLOOR AREA RATIO THAT IS ALLOWED BY APPLICABLE ZONING~~
45 ~~REGULATIONS THAT WERE ADOPTED BEFORE JANUARY 1, 2025.]~~

46 G. UNLESS STRICTER ZONING REGULATIONS ARE REQUIRED BY APPLICABLE
47 HISTORIC PRESERVATION STANDARDS, A MUNICIPALITY MAY REQUIRE ADMINISTRATIVE
48 SITE PLAN REVIEW SOLELY FOR THE PURPOSE OF CONFIRMING COMPLIANCE WITH
49 APPLICABLE STANDARDS, BUT MAY NOT REQUIRE A PUBLIC HEARING, VARIANCE,

1 CONDITIONAL USE PERMIT, SPECIAL PERMIT OR OTHER DISCRETIONARY APPROVAL
2 PROCESS FOR DEVELOPING MIDDLE HOUSING PURSUANT TO SUBSECTION E OF THIS
3 SECTION.

4 H. NOTWITHSTANDING ANY OTHER LAW, MIDDLE HOUSING THAT IS DEVELOPED
5 PURSUANT TO THIS SECTION MAY NOT BE DEVELOPED ON A SITE WHERE A STRUCTURE
6 THAT IS LISTED ON THE NATIONAL REGISTER OF HISTORIC PLACES ~~[OR THAT IS~~
7 ~~DESIGNATED AS HISTORIC BY THE MUNICIPALITY]~~ WAS DEMOLISHED UNLESS THE
8 DEMOLITION OF THE STRUCTURE WAS NECESSARY BECAUSE A CONDITION OR
9 CONDITIONS EXIST THAT CONSTITUTE A DANGER TO PUBLIC HEALTH, SAFETY AND
10 WELFARE, AS DEFINED BY A MUNICIPAL ORDINANCE, AND THE EXISTENCE OF THOSE
11 CONDITIONS ARE CERTIFIED BY A LICENSED ENGINEER OR BUILDING CODE OFFICIAL.

12 ~~E.~~ I. If a municipality does not adopt the regulations required by
13 this section on or before January 1, 2026, middle housing shall be allowed
14 on all lots in the municipality zoned for single-family residential use
15 without any limitations.

16 ~~F.~~ J. This section does not change or otherwise impair the terms
17 of any development agreement that exists on September 14, 2024.

18 ~~G.~~ K. Notwithstanding subsection A of this section, a utility
19 provider impacted by a development being developed pursuant to this
20 section shall have the opportunity to review and approve the site plan for
21 the development.

22 ~~H.~~ L. For the ~~purpose~~ PURPOSES of this section:

23 1. "Building code":

24 (a) Means a construction code adopted by a municipality.

25 (b) Includes a model building code, commercial code, plumbing and
26 mechanical code, electric code, energy conservation code, fire code,
27 property maintenance code, neighborhood preservation code, antiblight code
28 or other similar code.

29 2. "Central business district" means an area or series of areas
30 designated by a municipality that are primarily nonindustrial and that
31 attract community activity, including the entire geographic area that the
32 municipality has officially designated as its downtown or equivalent on
33 September 14, 2024.

34 3. "Duplex" means two dwelling units on the same parcel or lot in
35 attached, detached or semidetached arrangements that are designed for
36 residential occupancy by not more than two households living independently
37 from each other.

38 4. "Floor area ratio" means the ratio of allowed square footage in
39 a middle housing project to the square footage of the parcel on which it
40 is built.

41 5. "Fourplex" means four dwelling units on the same parcel or lot
42 in attached, detached or semidetached arrangements that are designed for
43 residential occupancy by not more than four households living
44 independently from each other.

45 6. "Household" means either:

46 (a) A single person living or residing in a dwelling or place of
47 residence.

48 (b) Two or more persons living together or residing in the same
49 dwelling or place of residence.

1 7. "Middle housing":

2 (a) Means buildings that are compatible in scale, form and
3 character with single-family houses and that contain two or more attached,
4 detached, stacked or clustered homes.

5 (b) Includes duplexes, triplexes, fourplexes and townhouses.

6 8. "Permitted use" means the ability for a development to be
7 approved without requiring a public hearing, variance, conditional use
8 permit, special permit or special exception, other than a discretionary
9 zoning action to ~~determination~~ DETERMINE that a site plan conforms with
10 applicable zoning regulations.

11 9. "Townhouses" means dwelling units that are constructed in a row
12 of two or more attached units in which each dwelling unit shares at least
13 one common wall with an adjacent unit and that are accessed by separate
14 outdoor entrances.

15 10. "Triplex" means three dwelling units on the same parcel or lot
16 in attached, detached or semidetached arrangements that are designed for
17 residential occupancy by not more than three households living
18 independently from each other."

19 Enroll and engross to conform

20 Amend title to conform

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